



EXPLOSIVES (AMENDMENT) ORDINANCE, 2002

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EXPLOSIVES (AMENDMENT) ORDINANCE, 2002

ORDINANCE No. CV OF 2002

An Ordinance further to amend the Explosives Act, 1884

WHEREAS this expedient further to amend the Explosives Act, 1884 (IV of 1884), for the purposes hereinafter appearing;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action',

NOW, THEREFORE, in pursuance of the Proclamation of Emergency of the Fourteenth day of October, 1999, and the Provisional Constitution Order No. 1 of 1999, read with the Provisional Constitution (Amendment) Order No.9 of 1999, and in exercise of all powers enabling him in that behalf, the President of the Islamic Republic of Pakistan is pleased to make and promulgate the following Ordinance:---

1. Short title and commencement.-(1) This Ordinance may be called the Explosives (Amendment) Ordinance, 2002.

(2) It shall come into force at once.

2. General amendment, Act IV of 1884. In the Explosives Act, 1884 (IV of 1884), hereinafter referred to as the said Act, for the word "appropriate. Government", wherever occurring, the words "Federal Government" shall be substituted.

3. Amendment of section 4, Act IV of 1884. In the said Act, in section 4,-

(a) for subsection (1) the following shall be substituted, namely:-

"(1) "explosives"-

(a) means gunpowder, nitroglycerine, nitroglycol, gun cotton, dinitro toluence, trinitro toluene, of mercury or any other metal, diazo dinitro phenol, coloured fires or any other substances whether a single chemical compound or a mixture of substances, whether solid or liquid or gaseous used or manufactured with a view to produce a practical effect by explosion or pyrotechnic effect; and

(b) includes,-

(i) chemical compounds, compositions or mixtures of which will produce, upon release of its potential energy, a sudden outburst of gases, thereby exerting high pressures on its surroundings. Explosives may be solid, liquid or gas, nitro compounds or in the form of water gel or slurry;

(ii) fog signals, fireworks, fuses, rockets percussion-caps, detonators, cartridges, ammunition of all descriptions and every adaptation or preparation of an explosives as defined in this clause; and

(iii) such other substance as the Federal Government may, by notification in the official Gazette, specify for the purposes of this subsection. ";

(b) for subsection (2) the following shall be substituted, namely:

"(2) manufacture includes the preparation of explosive or any component parts of an explosive, the admixture or other treatment of the same, the breaking up or unmaking of any explosive, or making fit for use any damaged explosive of the processing of any substance or

matter with a view to causing an explosion, implosion or disintegration, and the process of remaking altering or repairing any explosive;"

(c) for subsection (5) the following shall be substituted, namely:-

"(5) 'master',-

(a) in relation to any vessel or ship means any person, other than a pilot, harbour master, assistant harbour master or berthing master, having for the time being the charge or control of such vessel or aircraft, as the case may be;

(b) in relation to any boat belonging to a ship, means the master of that ship; and

(c) in relation to aircraft means captain of the aircraft";

(d) in subsection (6), after the word "sea", the comma and word "air shall be inserted:

(e) for subsection (7) the following shall be substituted, namely:-

"(7) aircraft" means any machine which can derive support in the atmosphere from-the reactions of the air other than the reactions of the air against the earth's surface, and includes balloons, whether fixed or free, airships, kites, gliders and flying machines, for this ordinance aircraft means cargo aircraft; and

(f) after subsection (7) substituted as aforesaid, the following new subsections shall be added, namely:-

"(8) 'export' means taking out of Pakistan to a place outside Pakistan by land, sea or air;

(9) prescribed' means prescribed by rules; and

(10) 'rules' means any rules made under the Act"

4. Amendment of section 5, Act IV of 1884.---In the said Act, in section 5,-

(a) in subsection (1),-

(i) after the word "Government" the commas and words " in consultation with the Provincial Government," shall be inserted; and

(ii) for the words "and importation" the comma and words "import and export" shall be substituted;

(b) in subsection (2),-

(i) in clause (e), the word "and", at the end, shall be omitted; and

(ii) in clause (f) for the full stop, at the end, a semicolon shall be substituted and thereafter the following new clauses shall be added, namely:-

"(g) the authority to which appeals may be preferred and the procedure to be followed by such authority;

(h) the total quantity of explosives that a licensee may possess in a given period of time; and

(i) the import and export of explosives by land, sea or air."; and

(c) in subsection (3),-

(i) after the word "transporting", the comma and word", exporting" shall be inserted; and

(ii) in the proviso,-

(a) in clause (a) after the word "importing", the comma and word "; exporting" shall be inserted and for the word "three" the word "thirty" shall be substituted;

(b) in clause (b), for the word "one" the word "ten" shall be substituted;

(c) in clause (c), for the words "five hundred" the words "five thousand" shall be substituted; and

(d) in clause (d), for the words "hundred" the word "thousand" shall be substituted.

5. Amendment of section 6, Act IV of 1884. In the said Act, for section 6 the following shall be substituted, namely:-

"6. Power of the Federal Government to prohibit the manufacture, possession use sale transport import or export of specially dangerous explosives.-(1) Notwithstanding anything contained in this Act, the Federal Government may from time to time by notification in the official Gazette, prohibit, either absolutely or subject to conditions, the manufacture, possession, use, sale, transport, import or export of any explosive which is of so dangerous a character that, in the opinion of the Federal Government, it is expedient for the public safety to issue such notification.

(2) The Customs Act, 1969 (IV of 1969), shall have effect in relation to any explosive with regard to the importation of which a notification has been issued under subsection (1), and the vessel, carriage or aircraft containing such explosive, as the said Act, have has in relation to any article the importation of which is prohibited or regulated thereunder, and shall apply accordingly to the vessel, carriage or aircraft containing such article.

(3) Any person manufacturing, possessing, using, selling transporting, importing or exporting any explosive in contravention of a notification issued under subsection (1), shall be punishable with fine which may extend to thirty thousand rupees, and, in the case of importation by water, the owner and master of the vessel and in the case of importation by air, the owner and the master of the aircraft, in which the explosive is imported shall, in the absence of reasonable excuse, each be punishable with fine which may extend to thirty thousand rupees."

6. Insertion of new section 6A, Act IV of 1884. In the said Act, after section 6 substituted as aforesaid, the following new sections shall be inserted, namely:-

"6A. Prohibition of manufacture possession sale or use, transport, import and export of explosives by young persons and certain other persons.-(1) Notwithstanding anything contained in this Act-

(a) any person-

(i) who has not completed the age of eighteen years; or

- (ii) who has been sentenced on conviction of any offence involving violence or moral turpitude for a term of not less than six months at any time during a period of five years after the expiration of the sentence; or
- (iii) who has been ordered to execute under the Code of Criminal Procedure, 1898 (Act V of 1898) a bond for keeping the peace or for good behaviour, at any time during the terms of the bond; or
- (iv) whose licence under this Act has been cancelled, for contravention of the provisions of this Act or of the rules made thereunder, at any time during a period of five years from date of cancellation of such licence;

shall not-

- (i) manufacture, sell, transport import or export any explosive; or
 - (ii) possess or use any such explosive as the Federal Government may, having regard to the nature thereof, by notification in the official Gazette, specify: and
- (b) no person shall sell, deliver or dispatch any explosive to a person whom he knows or has reason to believe at the time of such sale, delivery or dispatch-
- (i) to be prohibited under clause (a) to manufacture, sell, use, transport, import, export, or possess such explosive; or
 - (ii) to be of unsound mind or having physical disability.
- (a) manufactures, possesses, , sells, uses, transports, f imports or exports any explosive in contravention of the provisions of clause (a) of subsection (1); or
- (b) sells, delivers or dispatches any explosive in contravention of the provisions of clause (b) of subsection (1), shall be punishable with a fine not exceeding thirty thousand rupees.

7. Amendment of section 7, Act IV of 1884. In the said Act, in section 7, in subsection (1), in clause (a),-

- (i) after the word "carriage", the comma and word "aircraft" shall be inserted; and
- (ii) after the word "transported" occurring twice, the comma and word "exported" shall be inserted.

8. Amendment of section 8, Act IV of 1884. In the said Act, in section 8,-

- (a) in subsection (1),-
 - (i) after the words "or any carriage" the comma and word "aircraft" shall be inserted: and
 - (ii) after the words "master of the vessel", the words "or 'aircraft shall be inserted; and
- (b) in subsection (2), for the word "hundred" the word "thousand" and shall lie substituted.

9. Amendment of section 9, Act IV of 1884. In the said Act, in section 9, in subsection (1), after the word "carriage", the comma and word "aircraft" shall be inserted.

10. Insertion of new section 9B, Act IV of 1884. In the said Act, after section 9A, the following new section shall be inserted namely:-

"9B. Offences by, companies. Where the person, guilty of an offence under this Act, is a company, corporation, firm or institution, every director, partner and concerned employee of the company, corporation, firm or institution shall, unless he proves that the offence was committed without his knowledge or consent, be guilty of the offence."

11. Amendment of section 11, Act IV of 1884. In the said, Act, for section 11 the following shall be substituted, namely:-

"11. Distress of aircraft or vessel. Where the owner or master of any aircraft or vessel is adjudged under this Act or the rules, to pay a fine for any offence committed with, or in relation to, that aircraft or vessel, the Court may, in addition to any other power it may have for the purpose of compelling payment of the fine direct it to be levied by distress and sale of,-

- (a) the aircraft and its furniture or so much of the furniture; or
- (b) the vessel and the tackle, apparel and furniture of such vessel or so much of the tackle, apparel and furniture thereof; as is necessary for the payment of the fine".

12. Amendment of section 13, Act IV of 1884. In the said Act, in section 13,-

- (a) for the words "ship or boat" the words "aircraft or vessel" shall be substituted; and
- (b) after the words "conservator of the port" the words "or the officer-in-charge of the air port" shall be inserted..

13. Amendment of section 14, Act IV of 1884. In the said Act, in section 14, in subsection (1) for the words "or importation" the comma and words "import and export" shall be substituted.

14. Amendment of section 15, Act IV of 1884. In the said Act, in section 15 in the proviso, for the words "or importation" the comma and words "import and export" shall be substituted.

15. Insertion of new sections 19 and 20, Act IV of 1884. In the said Act, after section 18, the following new sections shall be inserted, namely:-

"19. Transportation of explosives by air. The transportation of explosives by air shall be carried out by cargo and other permissible aircraft and not by passenger aircraft in accordance with the rules and regulations of International Civil Aviation Organization (ICAO), International Air Transport Association (IATA) and Civil Aviation Authority of Pakistan (CAA).

20. Removal of difficulties. If any difficulty arises in giving effect to any provision of this Ordinance, the Federal Government may, by notification in the official Gazette, make such provisions, not inconsistent with the provisions of this Ordinance, as may appear to it to be appropriate or necessary for the purpose of removing such difficulty. "

